

1 ENGROSSED HOUSE
2 BILL NO. 3749

By: Travis and Harris of the
House

3 and

4 Gollihare of the Senate

5
6
7 [counties and county officers - authorized
8 employment of legal counsel - general counsel -
9 noncodification - effective date]
10
11
12

13 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

14 SECTION 1. AMENDATORY 19 O.S. 2021, Section 527, is
15 amended to read as follows:

16 Section 527. A. The sheriff, treasurer, clerk, court clerk,
17 each individual county commissioner, or assessor in a county shall
18 have the authority to employ a general counsel, either in-house as a
19 staff attorney or through an outside law firm, to advise or
20 represent that officer and his or her office in the performance of
21 the official duties of that office. The Board of County
22 Commissioners shall approve all contracts for outside counsel. A
23 general counsel employed pursuant to this section shall be
24 compensated from the funds of the employing county office.

B. The sheriff may employ outside counsel pursuant to this section to provide immediate representation to a deputy of the sheriff in a deputy-involved shooting incident; provided, the sheriff shall not continue payment to the counsel if the deputy involved is charged with any crime arising from the incident.

SECTION 2. This act shall become effective November 1, 2026.

Passed the House of Representatives the 25th day of March, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the ____ day of _____, 2026.

Presiding Officer of the Senate